

1.

CASE #	CASE NAME	HEARING NAME
CVRI2302604	ABDULLAH VS CHENG, M.D.	MOTION TO COMPEL DEFENDANT JEAN CHENG, M.D., INC., DBA BEST LASIK LASER EYE CENTER TO (1) COMPLY WITH THIS COURT'S MAY 7, 2026 ORDER, (2) VERIFY ITS SECOND FURTHER RESPONSES

Tentative Ruling:

GRANT the motion to compel compliance. Best Lasik Laser Eye Center (BLLEC) is Ordered to serve a verification to its second set of further responses, dated May 27, 2026, within 10 days. The Motion is denied as to the request to compel revised verifications to its first set of further responses, dated January 14, 2026, as moot.

GRANT the Motion to Compel further responses to the Request for Production Nos. 37-40 and 42. BLLEC is Ordered to serve further verified responses that contain the requested files, images and ESI within 20 days.

BLLEC is sanctioned in the sum of \$1,707.36, payable to Plaintiff's counsel within 30 days.

2.

CASE #	CASE NAME	HEARING NAME
CVRI2503944	AMAYA VS GLS US FREIGHT, INC.	MOTION TO BE RELIEVED AS COUNSEL FOR MOUNTAIN VALLEY EXPRESS, LLC

Tentative Ruling:

GRANT

3.

CASE #	CASE NAME	HEARING NAME
CVRI2602076	ROMERO VS SPECIALTY BUILDERS, INC.	MOTION TO COMPEL ARBITRATION

Tentative Ruling:

DENY

Defendant Specialty Builders Inc. now moves to compel arbitration of Plaintiff's claims with ADR Services, Inc. ("ADR"). Plaintiffs oppose, stating that they properly sought

arbitration under the BBB, and that when Defendant failed to respond to Plaintiffs' Complaint to the BBB, they escalated their Complaint to the AAA. Defendant contends that it did not consent to AAA arbitration because the arbitration agreement calls for arbitration through the BBB. Defendant argues that it was unaware that its accreditation with the BBB had been dropped as of September 5, 2025. The AAA closed the arbitration file administratively after Defendant failed to deposit its share of the arbitration fees.

Under *Hohenshelt v. Superior Court* (2025) 18 Cal.5th 310, if the drafting party fails to pay the fees and costs required to conduct the arbitration within 30 days, the consumer has the unilateral right to withdraw from arbitration and proceed in a court of appropriate jurisdiction. The Supreme Court in *Hohenshelt* recognized that a court may grant relief from the forfeiture of the right to arbitrate if the failure to pay resulted from a good faith mistake, inadvertence, or other excusable neglect, and was not willful, grossly negligent, or fraudulent. (*Id.*) Excusable neglect is found where a reasonably prudent person under similar circumstances might have made the same error. (*Zamora v. Clayborne Contracting Group, Inc.* (2002) 28 Cal.4th 249, 258) Gross negligence involves the extreme departure from the ordinary standard of conduct. (*City of Santa Barbara v. Superior Court* (2007) 41 Cal.4th 747, 754.)

Here, there is no dispute that Defendant failed to pay its arbitration fees to AAA. The issue is whether the failure to pay was "willful, grossly negligent, or fraudulent," or, as Defendant maintains, the result of a "good faith mistake."

The court concludes that this is a case of a willful failure to pay the arbitration fees, and not the result of a good faith mistake. Here, Defendant drafted the arbitration provision stating that arbitration was to be with the BBB if it was a member, and if not, the AAA rules would apply. It was Defendant's responsibility to know whether or not it was a member of the BBB, especially since this was the entire basis for its refusal to proceed with the AAA arbitration. Defendant states that it was unaware that its accreditation had been dropped as of September 5, 2025, but there is no information regarding when Defendant found out about the lack of accreditation. Moreover, Defendant knew of Plaintiffs' attempts to arbitrate their claims with the BBB first, before initiating arbitration with AAA, since Defendant made multiple responses to Plaintiffs' BBB Complaint. (Decl. M. Romero at Paras. 6-8, 10-11, 14-15, Ex.2) Finally, AAA notified Defendant on multiple occasions that the arbitration would be closed if Defendant did not pay the fees it owed, and Defendant chose not to pay. (Decl. of M. Romero, Paras. 23-24, 27-28, 31; Exs. 5-7.) Defendant made a calculated, strategic decision to withhold payment in the AAA arbitration. This decision was not the result of a good faith mistake or excusable neglect, but rather the product of a willful and/or grossly negligent decision. Defendant has waived its right to compel arbitration under CCP § 1281.98(a)(1).